

DexKor Data Processing Addendum (DPA)

Company: DEXKORCRM PRIVATE LIMITED

Effective Date: 1 April 2025

Approved By: Richard Samuel, Founder & CEO

Version: 1.0

This Data Processing Addendum ("DPA") forms part of the Terms of Service ("Agreement") between DEXKORCRM PRIVATE LIMITED, a company incorporated under the laws of India with its registered office at Innov8 Coworking Space, Orchid Center, 3rd Floor, Sector 53, Gurugram, Haryana 122022 ("Processor"), and the customer entity accepting the Agreement ("Controller").

This DPA reflects the parties' agreement with respect to the processing of personal data in compliance with applicable data protection laws including the Information Technology Act, 2000 (India), General Data Protection Regulation (EU 2016/679 - GDPR), UK GDPR, and other applicable privacy regulations.

1. Subject Matter and Duration

1.1 This DPA governs the processing of personal data by Processor on behalf of Controller in connection with the services provided under the Agreement.

1.2 This DPA shall remain in effect as long as Processor processes personal data on behalf of Controller under the Agreement.

2. Nature and Purpose of Processing

Processor may process personal data for the purposes of:

- Providing services such as chat support, user feedback, analytics, event logging, surveys, email delivery, notifications, and troubleshooting;
- Customer support and technical issue resolution;
- Communication and platform management;
- Any other tasks described in the Agreement.

3. Types of Personal Data and Categories of Data Subjects

Personal Data Types:

- Name, email, IP address, session ID, device information, messages, attachments
- Form data (email, descriptions)
- Usage data (clicks, scrolls, event logs, chat history)
- Metadata (OS, browser, language, screen resolution)
- Custom fields submitted by Controller

Categories of Data Subjects:

- Controller's customers, users, employees, and website/app visitors



4. Controller Obligations

- Ensure legal basis for processing under Article 6 GDPR or Indian IT Act
- Provide complete and accurate instructions to Processor
- Maintain records of data processing activities
- Fulfil obligations toward data subjects

5. Processor Obligations

- Process personal data only on documented instructions from Controller
- Ensure confidentiality and limit access to authorized personnel
- Assist Controller with data subject rights, breach notifications, and impact assessments
- Implement appropriate technical and organizational measures (Annex I)
- Allow audits by Controller with prior notice

6. Sub-Processors

Processor may engage sub-processors for hosting, communication, analytics, and infrastructure.

A list of current sub-processors is available in Annex II. Controller provides general authorization for the use of sub-processors. Processor will inform Controller of changes and allow objection within 10 business days.

7. Data Transfers

Processor may transfer personal data outside India or the EEA where necessary, ensuring:

- Adequate level of data protection;
- Use of Standard Contractual Clauses or other appropriate safeguards.

8. Data Subject Rights

Processor shall:

- Forward all data subject requests to Controller
- Assist Controller in fulfilling rights to access, rectification, deletion, and portability
- Notify Controller of complaints or investigations involving personal data

9. Security and Confidentiality

Processor implements appropriate technical and organizational measures to:

- Prevent unauthorized access, alteration, or disclosure
- Ensure resilience, availability, and regular testing of systems
- Securely delete or return data upon termination

Detailed controls are outlined in Annex I.

10. Personal Data Breaches

Processor shall notify Controller of any breach within 24 hours of discovery, including:



- Description of the nature of the breach
- Contact details of Processor's DPO
- Likely consequences and mitigation steps

11. Return or Deletion of Data

Upon termination of the Agreement, Processor shall:

- Return all personal data to Controller or delete it securely
- Retain minimal metadata where legally required for audit or compliance

12. Liability and Indemnity

Each party shall be liable for its own breaches. Controller indemnifies Processor against claims arising from unlawful instructions or failure to comply with data protection laws.

13. Governing Law

This DPA shall be governed by and construed in accordance with the laws of India. Disputes shall be subject to the exclusive jurisdiction of the courts in New Delhi.

14. Contact

Data Protection Officer
Email: privacy@dexkor.com

Annex I – Technical and Organizational Measures

- Role-based access control and user authentication
- Encryption of data in transit and at rest
- Pseudonymization and anonymization (where applicable)
- Regular penetration testing and vulnerability scans
- Incident detection and response systems
- Backups and disaster recovery plans

Annex II – Sub-Processors

1. Amazon Web Services (AWS) – Infrastructure hosting
 2. MongoDB Atlas – Cloud database
 3. Google Cloud / Firebase – Push notifications, analytics
 4. Stripe / Razorpay – Payment processing
 5. SendGrid / Postmark – Transactional emails
 6. OpenAI / AI Service Providers – AI-based support (optional)
 7. Cloudflare – CDN and DDoS protection
 8. Amplitude / Mixpanel – Product analytics
- A current list will be maintained at: Privacy Policy

